

Amendment No. 1 to SB1415

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 1415

House Bill No. 751*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 39-15-401(d)(2), is amended by deleting "subsection (d)" and substituting "subdivision (d)(1)".

SECTION 2. Tennessee Code Annotated, Section 39-15-401(d), is amended by designating the current language as subdivision (d)(1) and adding the following as a new subdivision (d)(2):

(2)

(A) A person who knowingly, by act or omission, engages in conduct that places a child in imminent danger of death, bodily injury, or physical or mental impairment commits a Class E felony, except that if the abused child is eight (8) years of age or less, then the offense is a Class B felony.

(B) For purposes of this subdivision (d)(2), a person engages in conduct that places a child in imminent danger of death, bodily injury, or physical or mental impairment if the person unlawfully exposes the child to fentanyl, carfentanil, remifentanil, alfentanil, thiafentanil, or a fentanyl derivative or analogue, and an analysis of a specimen of the child's blood, hair, fingernail, urine, or other bodily substance indicates the presence of fentanyl, carfentanil, remifentanil, alfentanil, thiafentanil, or a fentanyl derivative or analogue in the child's body.

SECTION 3. This act takes effect July 1, 2025, the public welfare requiring it.